



POLICE DEPARTMENT

September 25, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202303075 (Incident Date: April 11, 2023) regarding Police Officer Damion Cunningham, Tax No. 969034 (DADS No. 2024-31481)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202303075, pertaining to Police Officer Damion Cunningham. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Officer Cunningham would be detrimental to the Police Department's disciplinary process.

After reviewing the evidence, the Police Commissioner agrees with CCRB's substantiated findings, however he does not agree with the recommended penalty. A review of Police Officer Cunningham's disciplinary history revealed no prior substantiated CCRB allegations, and no formal Department disciplinary history. Police Officer Cunningham and his fellow officers spent approximately two hours at the scene of this incident, and acted in good faith throughout this encounter, in trying to find the correct resolution. Based on Police Officer Cunningham's lack of prior disciplinary history, and his good faith actions, a mitigated penalty is warranted.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to issue Police Officer Cunningham a Schedule "B" Command Discipline with the forfeiture of three (3) vacation days for the substantiated misconduct.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



October 1, 2024

The Honorable Thomas G. Donlon
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202303075 PO Damion Cunningham Tax No. 969034
DADS No. 2024-31481

Interim Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated September 23, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against PO Cunningham and issue a Schedule “B” Command Discipline. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that the Police Commissioner analyzed the facts and circumstances of this matter and agrees with CCRB’s substantiated findings but not the recommended penalty.

The CCRB respectfully disagrees with your decision. It is the CCRB’s position that PO Cunningham did not act in good faith which is supported by the BWC footage. PO Cunningham unlawfully entered § 87(2)(b) apartment despite contest from the civilian that PO Cunningham could not enter the residence. Despite the objections made by § 87(2)(b) PO Cunningham still crossed the threshold of his residence. PO Cunningham himself acknowledged that he crossed that threshold. Furthermore, PO Cunningham threatened § 87(2)(b) with OGA if she moved his foot that was unlawfully over the threshold. Not only did PO Cunningham not receive consent, implied or actual, there were no exigent circumstances that justified this unlawful entry.

While the CCRB acknowledges you are the final arbiter of discipline, the CCRB requests that the NYPD serve Charges and Specifications upon PO Cunningham.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

October 4, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202303075 (Incident Date: April 11, 2023) regarding Police Officer Damion Cunningham, Tax No. 969034 (DADS No. 2024-31481)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated October 1, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Damion Cunningham. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Devoy for the reasons expressed in my September 25, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs the issuance of a Schedule "B" Command Discipline with the forfeiture of three (3) vacation days for the substantiated misconduct.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office